SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUPT067427: IN THE MATTER OF: MONIQUE OSUNA
07/17/2026 in Department 42
Petition

Motion: Petition of Approval for Transfer of Structured Settlement Payment Rights *(Unopposed)*

Tentative Ruling:

For the reasons set forth below, the Court finds it necessary to continue the hearing to August 28, 2026 at 8:20 a.m. in Department 42 to allow Petitioner to submit a supplemental brief sufficiently addressing the matters further discussed below. Petitioner shall file the supplemental brief on or before August 14, 2026.

The Court will also require Petitioner to serve its supplemental brief, if any, on all interested parties as that term is defined in Ins. Code § 10134(g), to file proof of such service, and to give compliant notice of the Court's ruling herein.

Background:

Petition was filed on June 8, 2026, the Notice of Hearing filed on June 9, 2026, and "Notice of Independent Provessional [sic] Advisement" was filed on July 10, 2026.

Grounds:

Craeman, LLC (buyer, transferee, and petitioner) moves for approval of the transfer of certain structured settlement payment rights under Insurance Code § 10139.5, attaching the following Exhibits: Exhibit 1 (the Petition), Exhibit A (declaration of payee Monique Osuna), Exhibit B (Agreement for Sale of Structured Settlement Payments signed by Payee Osuna), Exhibit C (Payee's acknowledgement of right to obtain independent professional advice), Exhibit D (Disclosure Statements), Exhibit E (Payee's statement regarding dependents).

Terms of sale are 240 monthly life contingent payments of $2,361.57, starting on July 15, 2031 and continuing for 20-years until June 15, 2051, increasing 3% annually.

Payee Monique Osuna (Payee) will retain life-contingent monthly payments of $1,000 from July 15, 2031 through June 15, 2051, also increasing annually 3%; as well as life-contingent monthly payments of $6,071.36 from July 18, 2051 through the end of her life, increasing 3% annually.

Payee declares that the reasons for the transfer are to reinstate her driver's license, purchase a reliable vehicle for transportation, and to enroll in medical assistant school to "increase my long-term earning potential" and "achieve greater financial stability and self sufficiency." (Osuna Dec. at ¶ 9.) She is 42-years old, single, lives in Oxnard with her parents, and has a 10-year old child. (See Exhibit E for Kali Love Pacheco's age.) She does not have any child support obligations. (Osuna Dec. at ¶ 3.) The payments being sold were the result of a lawsuit resolved when she was a minor, (Ventura County Superior Court Case No. CIV199383), and the payments were not intended to pay for medical care or treatment or necessary living expenses. (Osuna Dec. at ¶¶ 6-8.)

Payee previously transferred the following payments:

- July 2012 (Ventura case no. 419388) transferred monthly payments in the amount of $461.23 commencing on July 15, 2013 and continuing through, and including July 15, 2023, increasing 3% annually [total of over $63,449.76 for $24,818.80]
- August 2013 (Ventura case no. 438739) transferred monthly payments in the amount of $591.00 commencing on July 15, 2015 and continuing through, and including June 15, 2029, increasing 3% annually [total of over $99,288 for $34,207.78]
- June 2014 (Ventura case no. 452419) transferred payments in the amount of $264.51 commencing on July 15, 2018 and continuing through, and including June 15, 2023, increasing 3% annually and monthly payments in the amount of $905.01 commencing on July 15, 2023 and continuing through, and including June 15, 2029, increasing 3% annually [total of over $87,099.54 for $12,000]
- November 2014 (Ventura case no. 458062) transferred monthly payments in the amount of $514.51 commencing on July 15, 2015 and continuing through, and including June 15, 2018, increasing 3% annually; monthly, payments in the amount of $844.07 commencing on July 15, 2018 and continuing through, and including June 15, 2023, increasing 3% annually, monthly payments in the amount of $1,000.00 commencing on July 15, 2023 and continuing through, and including June 15, 2029, increasing 3% annually; and monthly payments in the amount of $3,168.62 commencing on July 15, 2029 and continuing through, and including June 15, 2031, increasing 3% annually [total of over $227,667.48 for $49,000]

(See Osuna Dec. at ¶¶ 10.)

Petitioner confirms that she has not attempted previous transactions within the past 5 years that were denied, dismissed or withdrawn before a decision on the merits (Osuna Dec. at ¶¶ 11-12).

Discussion:

A. <u>Petition for Approval of Transfer of Structured Settlement Payments</u>

This Petition is governed by Insurance Code §§ 10134 through 10139.5. (See *321 Henderson Receivables Origination LLC v. Sioteco* (2009) 173 Cal.App.4th 1059, 1066.) Under Insurance Code § 10137, a transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

a) The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.

b) The transfer complies with the requirements of this article and will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in § 10139.5.

Generally, the court approval process governed by Insurance Code § 10134 et seq. (the Structured Settlement Protection Act or SSPA) "requires: (1) disclosures to the transferor of the structured settlement payment rights, (2) notice to the Attorney General, and (3) court approval[,]" and requires the filing of a petition "in the county in which the transferor resides for approval of the transfer, attaching copies of the petition, the transfer agreement, the disclosure form, the annuity contract, any qualified assignment agreement and the structured settlement agreement, a list of the names and ages of the transferor's dependents, notice of the court hearing date, and notice of a right to respond...." (See *321 Henderson Receivables Origination LLC v. Sioteco, supra,* 173 Cal.App.4th at 1065-1066.)

Pursuant to Insurance Code § 10139.5, subdivision (a), the Court must make the following express findings as to a transfer of structured settlement payment rights:

> (1) The transfer is in the best interest of the payee, taking into account the welfare and support of the payee's dependents.
> (2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice.
> (3) The transferee has complied with the notification requirements pursuant to paragraph (2) of subdivision (f), the transferee has provided the payee with a disclosure form that complies with Section 10136, and the transfer agreement complies with Sections 10136 and 10138.
> (4) The transfer does not contravene any applicable statute or the order of any court or other government authority.
> (5) The payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.
> (6) The payee understands and does not wish to exercise the payee's right to cancel the transfer agreement.

Insurance Code § 10139.5, subdivision (b) sets forth 15 factors to consider in determining whether the transfer is fair and reasonable and in the best interest of the payee, including but not limited to: (1) the reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level; (2) the stated purpose of the transfer; (3) the payee's financial and economic situation; and (4) the terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments.

"After consideration of the petition and its attached documents, any written support or opposition by interested parties, and any evidence presented at the hearing, the court grants or denies the petition." (See *321 Henderson Receivables Origination LLC v. Sioteco, supra,* 173 Cal.App.4th at p. 1066.) To grant the petition for approval, the court must make the express findings set forth above. (*Ibid*.) The express written findings required to grant the present petition must be supported by facts and evidence appearing in the record.

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B. Application

First, the Court observes that the relevant annuity contract is not attached to the Petition. Petitioner stated that it was attached as Exhibit A-1 to Osuna's declaration. (Petition at 5, ¶ D.) However, what is attached as Exhibit A-1 is the contract from Hartford Life Insurance Company providing for 30 years of payments of $1,384.93 between July 15, 2001 to June 15, 2031.

The instant Petition seeks approval for payments starting in 2031. Likewise, the "Release and Settlement Agreement" included in Ex. A-1 regarding the underlying settlement in case CIV199383, makes no mention of the annuity at issue in this Petition; instead, it mentions only the 30-year annuity for monthly payments of $1,384.93 and a payment in a blocked City National Bank account.

The Court should review a copy of the annuity contract "if available" and it should be included in the petition under Ins. Code § 10139.5(f)((2)(E). There was no indication provided that the copy of the annuity contract is not available or that reasonable efforts to locate it were made. (Ins. Code § 10139.5(f)(2)(H).)

Second, Payee's declaration fails to include a statement about her monthly income or financial resources. (See Ins. Code § 10139.5, subdivision (c)(4).)

Third, the Court must consider many factors when determining whether to approve a petition. (See Ins. Code § 10139.5(b).) Here the Court finds it necessary to continue the hearing in order to get more information about the following:

- Payee's mental capacity, legal knowledge, maturity level [subd. (b)(1)];
- Payee's financial and economic situation [subd. (b)(3)] ;
- Payee's other means of income or support aside from the payments [subd. (b)(8)];
- Whether Payee was satisfied with the four prior transactions involving her structured settlement payments [subd. (b)(10)]; and
- Whether there is a "hardship situation" faced by payee or her dependent [subd. (b)(13)].

The Court notes that the fact that Payee has made five attempts to obtain funds from her structured settlements, and was successful four times in the past, is cause for some concern. Payee obtained structured settlement transfers in July 2012, August 2013, June 2014 and November 2014. A fifth attempt was denied by the court in November 2015. The four prior transfers can be viewed as evidence that Payee is familiar with the process. However, alternatively they could also be viewed as evidence that Payee has not managed her financial resources effectively.

The examples of deficiencies provided above are intended to be illustrative but not exhaustive. For all reasons discussed above, the court is presently unable to make the express written findings required under Ins. Code § 10139.5 at this juncture. Therefore, the court will continue the hearing on the petition to permit Petitioner to file and serve a supplemental brief explaining, on a point-by-point basis with sufficient reasoned argument and specific citations to the record, why each factor set forth in subdivision (a) of § 10139.5 has been satisfied here.

The evidence, information, and arguments presented in Petitioner's supplemental brief must be sufficient to permit the court to make the express written findings described above.